OTAS TO HAND OVER AI PRICING POLICY DETAILS IN US HOUSE COMMITTEE INVESTIGATION

NEWS (/NEWS) / TECHNOLOGY (/TECHNOLOGY)

BY LINDA FOX (/LINDA-FOX) | MARCH 6, 2026

The U.S. congressional committee that monitors emerging technologies has raised concerns about how artificial intelligence (AI) is impacting pricing policies in letters to the CEOs of **Booking Holdings (https://bookingholdings.com)**, **Expedia Group (https://expediagroup.com)**, **Lyft (https://lyft.com)** and **Uber Technologies (https://uber.com)**.

James Comer, chairman of the U.S. House Committee on Oversight and Government Reform, has requested documents and information from the companies as it seeks to understand how their pricing policies work.

The **committee is investigating (https://oversight.house.gov/release/comer-investigates-use-of-artificial-intelligence-to-set-prices-for-consumers/)** how the use of AI in combination with consumer data can lead to higher prices.

"Companies utilizing surveillance pricing deploy algorithms in conjunction with 'harvested' personal data to determine a consumer's emotional state, purchase intent, maximum willingness to pay (or so-called 'pain point') and an individualized price is tailored accordingly," said Comer.

He added the practice can take place in a "black box" environment without consumers knowing that personalized pricing is occurring or that their information might be driving higher prices.

"Surveillance pricing can be difficult to detect because consumers rarely have a view into what information a company has about them, what the prices they see are based on or what prices other customers may be seeing for the same goods or services—making it difficult for consumers to make informed purchasing decisions," Comer said.

The committee highlighted a Washington Post report **citing Uber's use of AI-based pricing technology (https://www.washingtonpost.com/technology/2025/12/01/uber-lyft-price-saving/)**, where identical products are priced differently for one customer compared to another. It also pointed to **another report (https://www.motor1.com/news/777223/new-york-uber-surveillance-pricing/)** where the price for the same trip within the same time frame differed by 221% for two different users.

In a statement, Uber said that it does not engage in surveillance pricing, "including in the ways the letter describes."

It added that location, time and demand determine fares, not customer data such as past behavior or device information. In an article published last year, the company also detailed why drivers sometimes see **different fares for similar trips (https://uberpubpolicy.medium.com/why-drivers-may-see-slightly-different-fares-for-similar-trips-8afc03876f4e)**.

"Any variations in fares aren't personalized to the individual; they reflect marketplace factors like how many drivers are currently active, where they are, and factors impacting traffic on roadways. We look forward to responding more fully to the chairman's letter."

Uber said data including [illegible] and device type, help companies create digital profiles.

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"Expedia Group does not increase prices based on user data or activity and does not personalize pricing based on any protected personal characteristics. We support efforts to make pricing easier for travelers to understand, while ensuring they still have access to valuable deals and discounts," a spokesperson said

The committee said its request for information from the companies is part of a wider investigation into pricing opacity. PhocusWire has contacted Booking Holdings and Lyft for comment.

Comer also said the committee supports the "advancement and use of artificial intelligence tools that allow companies to align prices with demand fluctuations, consumer preferences and operational costs," but its concern is around the potential for companies to "weaponize personal data."

In August 2025, the U.S. Department for Transportation said it would **investigate airlines using AI to set prices (https://www.reuters.com/world/us/us-criticizes-use-ai-personalize-airline-ticket-prices-would-investigate-2025-08-05/)** based on a traveler's personal data.

The move followed an update from Delta Air Lines on its **use of AI pricing technology from Fetcherr (https://www.phocuswire.com/delta-fetcherr-ai-pricing-deployment)**. The airline has stated: "There is no fare product Delta has ever used, is testing or plans to use that targets customers with individualized prices based on personal data."

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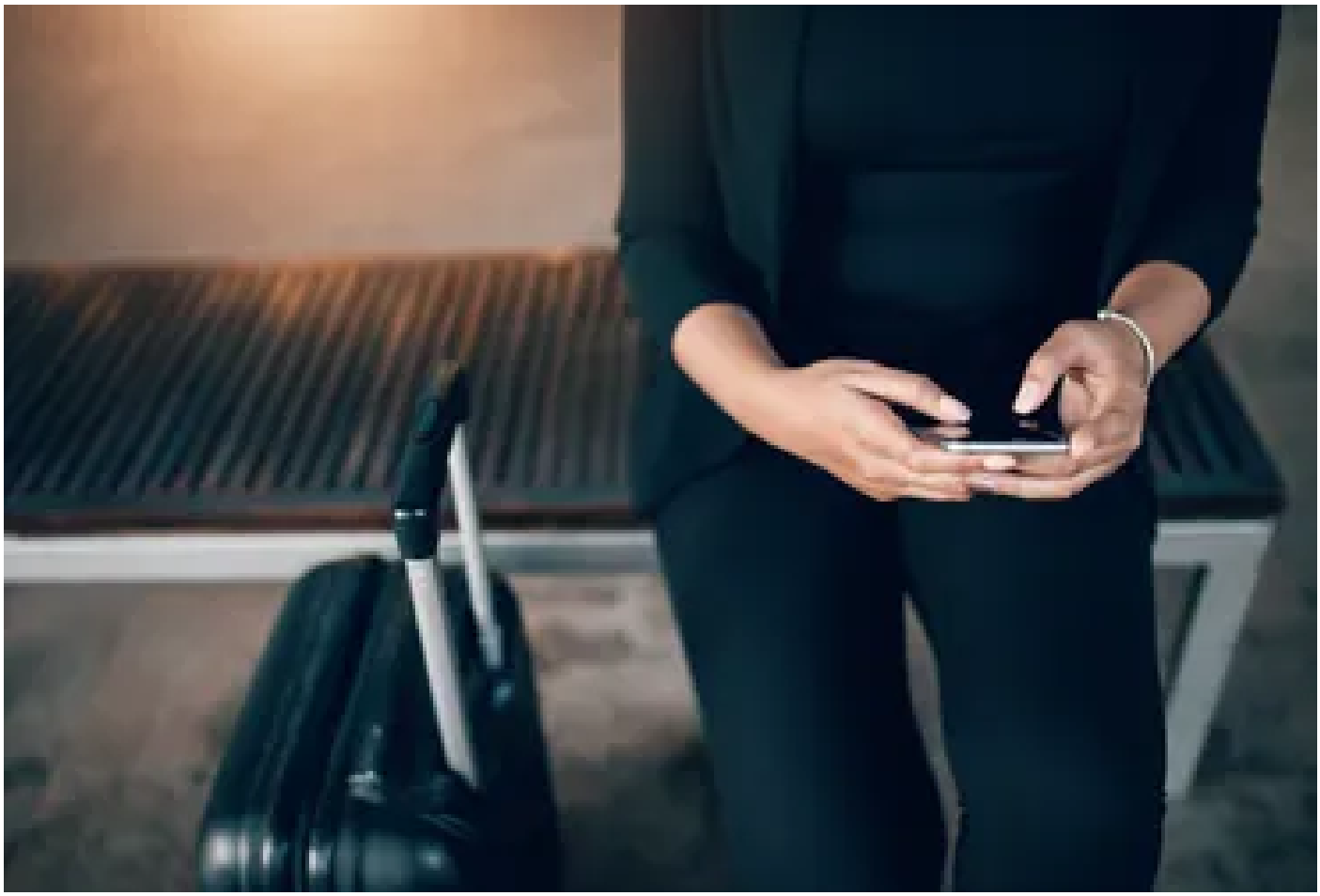

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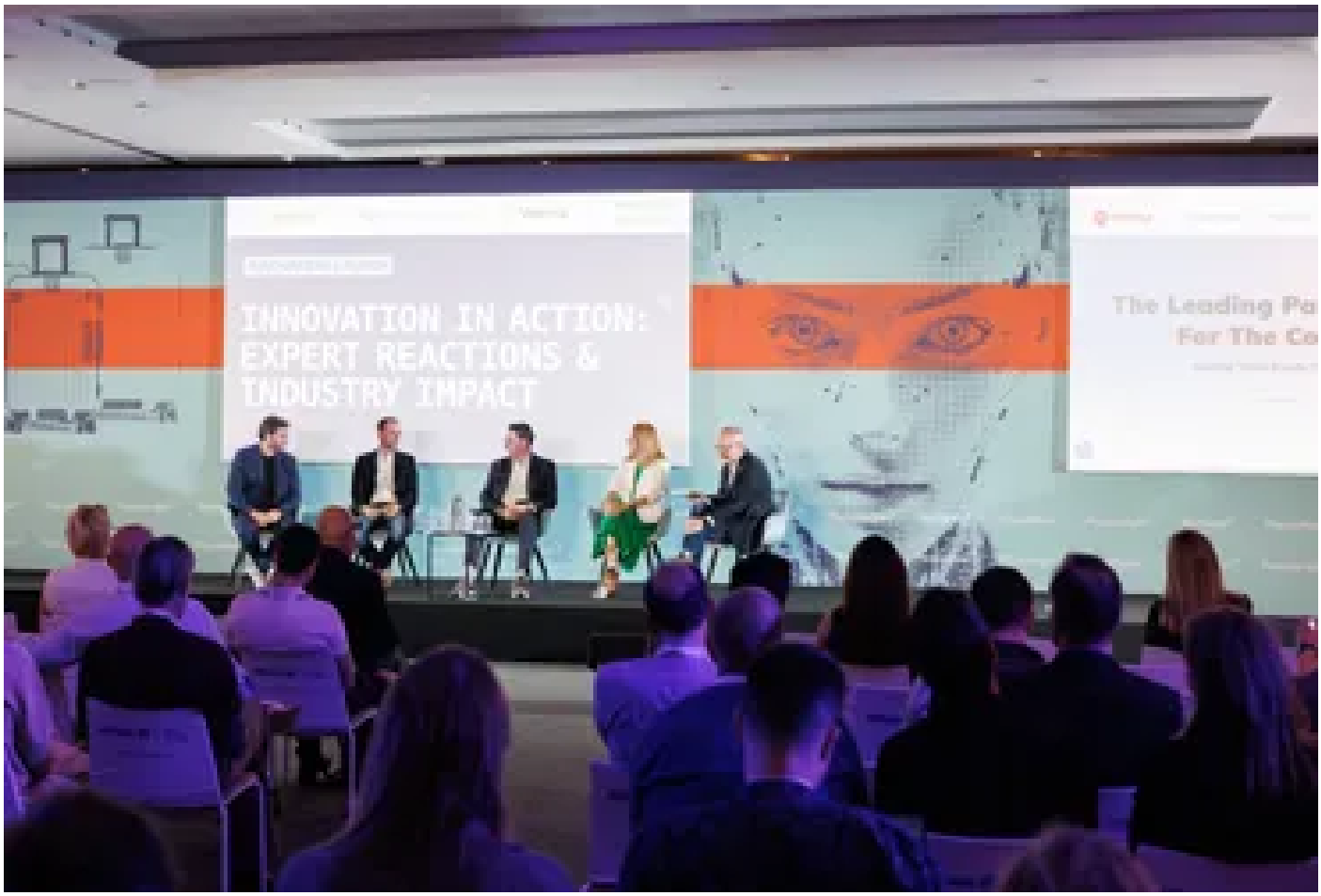

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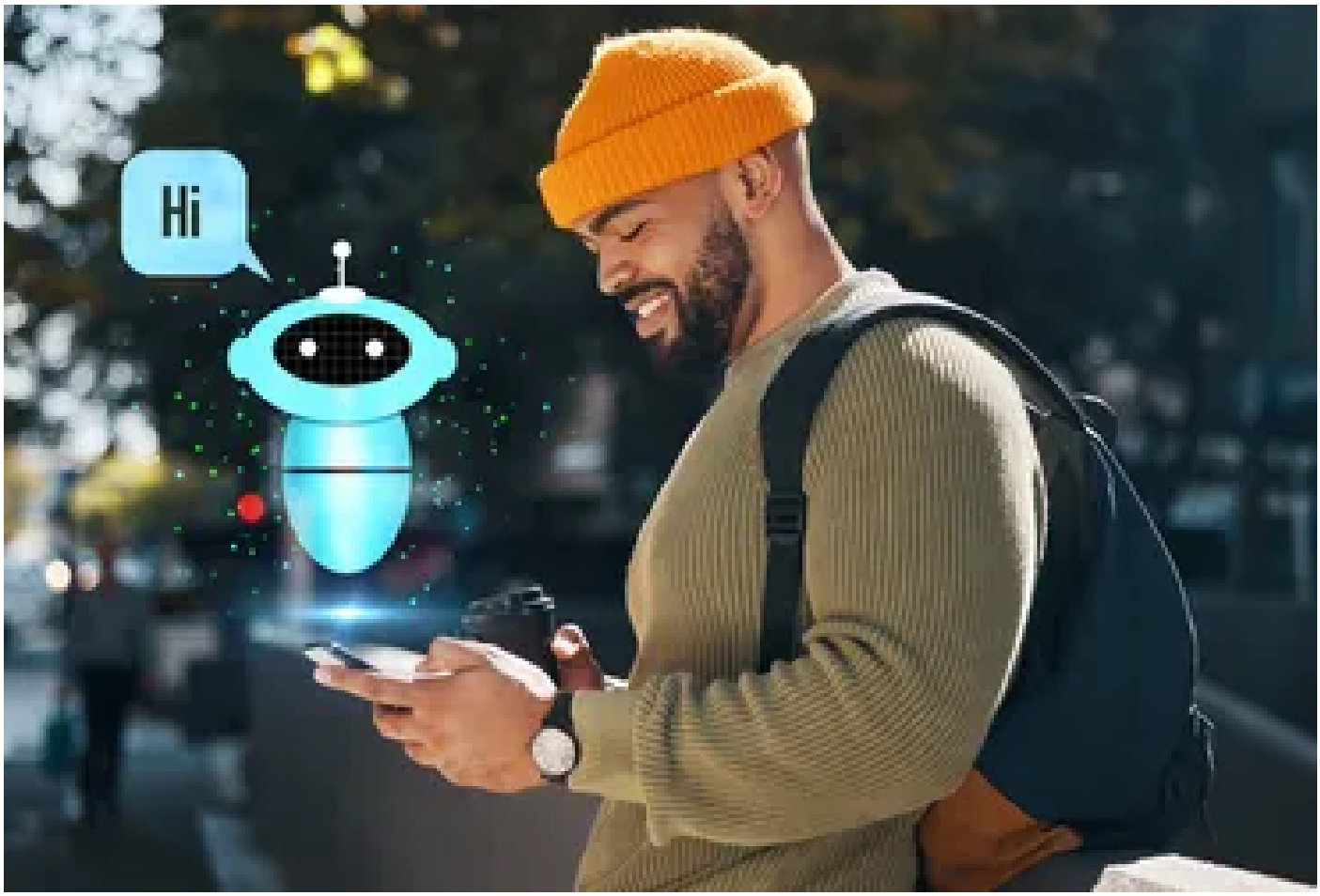

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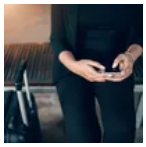

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